

hearing date, (2) provide timely service of both the Amended Notice and July 14, 2026 Application on all other parties pursuant to Code Civ. Proc., § 1005, subd. (b), and (3) file a POS prior to the continued hearing pursuant to Rules of Court, rule 3.1300, subd. (c).

There is no Amended Notice or POS in the Court file. That said, the Court notes the representations made through Plaintiff's Motion to Continue Pending Retention of Legal Counsel, filed August 18, 2026, regarding Plaintiff's wish for additional time to retain counsel. Thus, the Court finds an additional continuance for that reason appropriate.

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Nai Saechao v. Wal-Mart Associates, Inc

26CV001131

[1] DEFENDANTS' DEMURRER TO PLAINTIFF'S COMPLAINT

TENTATIVE RULING: The demurrer is OVERRULED.

A. PROCEDURAL MATTERS

By Minute Order dated August 25, 2026, the Court continued the matter and directed the moving party to provide an amended notice with notice of the Court's tentative ruling system as required by Local Rule 2.9. The moving party filed an amended notice; however, the Court notes that the tentative ruling notice contained therein is not the current version required under Local Rule 2.9, effective 1/1/26. Counsel is directed to review the Local Rules and provide the correct notice going forward.

Defendants Wal-Mart Associates, Inc. ("Wal-Mart") and Parker Capps ("Capps") (collectively "Defendants") demur, pursuant to Code of Civil Procedure section 430.10,³ subdivision (e), to the Second, Sixth, Seventh, Eighth, Tenth, Eleventh, Twelfth, Thirteenth, Fourteenth Causes of Action asserted in the Complaint filed by Plaintiff Nai Saechao ("Plaintiff").

B. LEGAL STANDARD

A complaint must contain "facts constituting the cause of action." (§ 425.10, subd. (a)(1).) The party against whom a complaint has been filed may object, by demurrer, on the grounds that "[t]he pleading does not state facts sufficient to constitute a cause of action," "[t]he pleading is uncertain," or "[i]n an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct." (§ 430.10, subds. (e)-(g).)

A demurrer is treated as "admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court must "construe the allegations of a complaint liberally in favor of the pleader." (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) The Court must also accept as true facts that may

³ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) The Court may also consider as grounds for a demurrer any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code. Civ. Proc., § 430.30, subd. (a).) Because “[a] demurrer tests only the legal sufficiency of the pleading . . . the question of plaintiff’s ability to prove the [] allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Comm. on Children’s Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14.)

C. DISCUSSION

The Complaint asserts harassment, retaliation, and wage and hour causes of action arising from Plaintiff’s requests for accommodations and leave due to her pregnancy while employed by Wal-Mart.

Defendants argue that the Second Cause of Action for Harassment fails because the conduct alleged in Paragraphs 16, 17, 19, and 50: (1) constitutes a type of necessary action to carry out the duties of the business and personnel management, which does not qualify as actionable harassment and (2) is not sufficiently severe or pervasive as to alter the conditions of Plaintiff’s employment and create an abusive working environment.

The Court disagrees with Defendants that the conduct alleged in the Complaint can only, as a matter of law, constitute business and personnel management conduct and not rise to the level of actionable harassment. Paragraph 16 alleges that Capps “encouraged Plaintiff to step down from her position or transfer to a lower-paying role at another store” due to her anticipated leave coinciding with the holiday season. Paragraph 17 alleges that Plaintiff received written disciplinary action for “consistently fail[ing] to maintain basic standards” based upon, allegedly, a single instance when Plaintiff was not at work. Paragraph 19 alleges that Defendants assigned Plaintiff workloads that made it impossible to complete her duties within her accommodated hours, and, at the same time, blamed Plaintiff for not adhering to the accommodated schedule.

Taking these allegations as true and weighing all inferences in favor of Plaintiff, the Court does not find that the allegations of the Complaint fail, as a matter of law, to state facts supplying the elements of a harassment cause of action.

Thus, the demurrer to the Second Cause of Action is OVERRULED.

Defendants argue that the Sixth Cause of Action for Retaliation in Violation of the California Family Rights Act (“CFRA”), Seventh Cause of Action for Interference with Rights Under the CFRA, and Eighth Cause of Action for Interference with Pregnancy Disability Leave Rights fail because they are merely duplicative of the Fifth Cause of Action for Retaliation in Violation of FEHA. Specifically, Defendants contend that the Sixth, Seventh, and Eighth causes of action add nothing to the Fifth Cause of Action by way of fact or theory of recovery.

The Court acknowledges that there is a split, among the California Court of Appeal Districts, regarding whether duplicative pleading is a proper ground for demurrer. The Fourth District of the California Court of Appeals has held that a demurrer may properly be sustained

where a cause of action is entirely duplicative of another cause of action in the same complaint. (See *Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290 and *Rodrigues v. Campbell Industries* (1978) 87 Cal.App.3d 494, 501.) The Sixth District and, more recently, Fifth District of the California Court of Appeal have held that a court cannot sustain a demurrer to a cause of action solely on the basis that it is duplicative or redundant. (See *Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858 and *R.L. v. Merced City School Dist.* (2025) 114 Cal.App.5th 89, 119 [adopting *Blickman*'s holding that "[r]edundancy, however, is not enumerated as one of the statutory grounds on which a demurrer may be sustained"].) It does not appear that the First District of the California Court of Appeals has addressed this issue.

Plaintiff argues that the Fifth through Eighth Causes of Action are not duplicative because each asserts a distinct statutory claim and entitlement: the Fifth Cause of Action arises under Gov. Code section 12940, subdivision (h); the Sixth arises under Gov. Code section 12945.2; the Eighth arises under Gov. Code section 12945, subdivision (a)(1); and the Seventh is based on an interference of rights under Gov. Code section 12945.2, which she contends is a different entitlement as it does not require the element of motive that is required for a standard Gov. Code section 12945.2 violation.

Based on Plaintiff's contention that the separate statutes and entitlements require different standards and elements of proof, the Court finds the organization of Plaintiff's Complaint, separated by title of each theory, to be clear and helpful, even assuming *arguendo* the Sixth through Eighth causes of action add nothing to the Fifth Cause of Action by way of fact or theory of recovery. For this reason, the Court elects to follow *R.L.* and *Blickman*'s reasoning, here, that duplicative pleading, "if it justifies any judicial intervention at all, is ordinarily dealt with most economically at trial, or on a dispositive motion such as summary judgment." (*Blickman, supra*, 162 Cal.App.4th at 890.)

Thus, the demurrer to the Sixth, Seventh, and Eighth Causes of Action is OVERRULED.

Defendants argue that the Tenth through Fifteenth Causes of Action for various violations of the Labor Code against Capps fail because the Complaint does not contain allegations sufficient to establish that Capps was a managing agent of Wal-Mart, such that Labor Code section 558.1 applies. (See Lab. Code, § 558.1, subds. (a)-(b) [allowing "an owner, director, officer, or managing agent of the employer" to "be held liable as the employer for [specified Labor Code violations]"].) "'Managing agents' are employees who exercise substantial discretionary authority over decisions that ultimately determine corporate policy." (*White v. Ultramar, Inc.* (1999) 21 Cal.4th 563, 573.)

Plaintiff argues that the Complaint's allegations are sufficient, under the following test enumerated in *Usher v. White* (2021) 64 Cal.App.5th 883, 869-97 (authority cited by Defendants), to apply Labor Code section 558.1: "[T]o be held liable under section 558.1, an 'owner' ... must either have been personally involved in the purported violation of one or more of the enumerated provisions; or, absent such personal involvement, had sufficient participation in the activities of the employer, including, for example, over those responsible for the alleged

wage and hour violations, such that the ‘owner’ may be deemed to have contributed to, and thus for purposes of this statute, ‘cause[d]’ a violation.” (*Usher, supra*, 64 Cal.App.5th at 896-97.)

The Court finds that the Complaint sufficiently alleges facts indicating Capps’ personal involvement and/or participation in the purported wage and hour violations. (See Compl., ¶¶ 4, 17.) At the very least, contrary to the inference Defendants seek to have the Court reach at this juncture, the Complaint does not allege facts affirmatively negating Capps’ role as a “managing agent.”

Thus, the demurrer to the Tenth through Fifteenth Causes of Action is OVERRULED.

[2] DEFENDANTS’ MOTION TO STRIKE PORTIONS OF PLAINTIFF’S COMPLAINT

TENTATIVE RULING: The motion is GRANTED. Plaintiff is granted 10 days’ leave from notice of entry of order to amend in accordance with this ruling.

A. PRELIMINARY MATTERS

By Minute Order dated August 25, 2026, the Court continued the matter and directed the moving party to provide an amended notice with notice of the Court’s tentative ruling system as required by Local Rule 2.9. The moving party filed an amended notice; however, the Court notes that the tentative ruling notice contained therein is not the current version required under Local Rule 2.9, effective 1/1/26. Counsel is directed to review the Local Rules and provide the correct notice going forward.

Defendants Wal-Mart Associates, Inc. (“Wal-Mart”) and Parker Capps (“Capps”) (collectively “Defendants”) move, pursuant to Code of Civil Procedure sections 435 and 436, to strike the punitive damages allegations from the Complaint filed by Plaintiff Nai Saechao (“Plaintiff”).

B. LEGAL STANDARDS

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading [or] (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.) “Irrelevant matter” means an immaterial allegation in a pleading including allegations “neither pertinent to nor supported by an otherwise sufficient claim or defense,” or “a demand for judgment requesting relief that is not supported by the allegations of the complaint.” (Code Civ. Proc., § 431.10(b)(3); *Turman v. Turning Point of Cent. Cal., Inc.* (2010) 191 Cal.App.4th 53, 63-64.) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437, subd. (a).) The Court is to “read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Turman, supra*, 191 Cal.App.4th at 63.)

To adequately state a claim for exemplary damages, a complaint must contain allegations that the defendant has been guilty of oppression, fraud or malice. (Civ. Code, § 3294, subd. (a); *Turman, supra*, 191 Cal.App.4th at 63.) “Malice” includes “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1).) “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (*Id.* at subd. (c)(2).)

C. DISCUSSION

The Court finds no factual allegations in the Complaint that Defendants acted with oppression or malice. Parroting the language of the punitive damages statute is insufficient without facts to support the allegation. Plaintiff asserts that “the Complaint alleges far more than the bare violation of a statute.” (Opp., 6:9-14, citing Compl., ¶¶ 14-19.) The Court disagrees. While the Court finds the allegations sufficient to state a cause of action (as found in the Court’s concurrent ruling on Defendants’ demurrer), the Court does not find that those factual allegations rise to the level of malice or oppression.

Based on the foregoing, the Court does not find that the factual allegations of the SAC are sufficient to support a prayer for punitive damages. The Court, therefore, finds good cause for striking the language parroting the punitive damages statute as well as the punitive damages prayer, as identified in Defendants’ Notice of Motion.

It is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Plaintiff can state a good cause of action. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 (*Goodman*).) The Court finds, from the allegations of the Complaint, a *possibility* that Plaintiff can amend to allege facts that would support a finding of malice or oppression. Therefore, the Court grants Plaintiff leave to amend the Complaint for this limited purpose.

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Julie Anne Corley et al v. Monticello Vineyards, Inc.

26CV001522

PETITIONERS’ APPLICATION COMPELLING ANNUAL MEETING OF
SHAREHOLDERS

TENTATIVE RULING: The Application is GRANTED. Monticello Vineyards, Inc. shall hold its annual meeting of shareholders on October 21, 2026, at 10:00 a.m., in person and by simultaneous electronic video screen communication. The record date for determining the shareholders entitled to notice of and to vote at the meeting shall be May 21, 2026.

Petitioners Julie Anne Corley, Carolyn Corley Burgess, Chris Corley and Marilyn Corley apply, pursuant to California Corporations Code section 600, subdivision (c), for an order compelling respondent Monticello Vineyards, Inc. (MV) to hold its annual meeting of shareholders.